

Court No. - 42

Case :- WRIT - C No. - 7322 of 2023

Petitioner :- Kgn Stone Crusher Through Its Proprietor Rafiq Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- C.S.C.,Ajay Singh,Gaurav Singh

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Heard learned counsel for the parties.

Sri Gaurav Singh, learned Counsel for the respondent - Electricity Department has received written instructions.

Petitioner, a licensee of a Stone Crusher Mill, by the instant writ petition seeks restoration of electricity supply.

Learned counsel appearing for the respondent - Electricity Department, on instructions submits that the premises of the petitioner was inspected and theft was found at 74.6 KW, over and above the sanctioned load. Consequently, vide provisional assessment order dated 17 December 2022, the petitioner was assessed at Rs. 83,24,718/-. It is also informed that an F.I.R. has been lodged against him. The petitioner has suppressed all these material facts in the writ petition.

In the circumstances, this Court is not inclined to interfere in the matter involving disputed question of facts. The writ petition being devoid of merit is, accordingly, **dismissed**.

Petitioner has a remedy to file objections under Paragraph 6.8 of U.P. Electricity Supply Code, 2005. The petitioner is at liberty to approach the competent authority for supply of electricity on terms and conditions, to the satisfaction of the respondents.

It is clarified that the Court has not entered into the merit, as well as, the rival contentions of the respective parties.

Order Date :- 16.3.2023

I.A.Siddiqui